MEASURE H

PROPOSAL TO AMEND PLACER COUNTY CHARTER SECTION 502

Shall the measure amending Article V, Section 502(a) of the Placer County Charter to allow alternative procedures for the removal of the County Executive Officer if specified in an employment agreement, providing greater flexibility in negotiating employment terms for recruitment and retention, while preserving Board of Supervisors' oversight, be adopted?

YES ____ **NO ____**

COUNTY COUNSEL'S IMPARTIAL ANALYSIS OF MEASURE H

The Placer County Charter is the governing document that establishes the organizational structure, powers, duties, and responsibilities of the county's elected and appointed officials. Measure H would amend Section 502(a) of the Placer County Charter relating to the procedure for removal of the County Executive Officer (CEO). The CEO is the chief administrative officer of the county and is appointed by the Board of Supervisors based on executive and administrative qualifications and experience. The CEO serves at the pleasure of the Board and may be removed by an affirmative vote of three members of the Board.

Measure H would amend Section 502(a) to provide that the CEO could be removed by an affirmative vote of three members of the Board, *unless* otherwise specified in an employment contract between the Board and the CEO. If approved, the measure would allow an employment contract between the Board and the CEO to provide for different terms concerning removal of the CEO. The measure does not establish a specific alternative procedure for removal or require that the Board enter into an employment contract containing alternative removal provisions.

Measure H would not change the CEO's role as the County's chief administrative officer, the requirement that the CEO be appointed by the Board of Supervisors, or the requirement that the CEO's performance be evaluated by the Board from time to time.

This measure was placed on the ballot by the Board of Supervisors of the County of Placer through adoption of Ordinance 6382-B. Approval by a majority of voters voting on this measure is required for its adoption.

A "YES" vote on Measure H is a vote to amend the Placer County Charter to allow an employment contract between the Board of Supervisors and the County Executive Officer to establish provisions governing removal of the County Executive Officer.

A "NO" vote on Measure H is a vote to leave the current Charter language unchanged, under which the County Executive Officer may be removed by an affirmative vote of three members of the Board of Supervisors, and the Charter would not authorize an employment contract to provide otherwise.

This analysis is submitted by the Office of the County Counsel of the County of Placer pursuant to the requirements of Section 9160 of the Elections Code of the State of California.

Clayton T. Cook, County Counsel

The above statement is an impartial analysis of Measure H. If you desire a copy of the measure, please call the Placer County Registrar of Voters at 530-886-5650 (toll-free 1-800-824-8683) and a copy will be mailed at no cost to you.

NO ARGUMENT IN FAVOR OF MEASURE H WAS SUBMITTED

NO ARGUMENT AGAINST MEASURE H WAS SUBMITTED

PROPOSED CHARTER TEXT REVISION

If a majority of the electorate of Placer County approves the above question, then Article V, Section 502(a) of the Placer County Charter shall be amended as follows:

Sec. 502 County Executive Officer.

(a) Appointment. The County Executive Officer is the chief administrative officer of the county. The County Executive Officer shall be appointed by the Board on the basis of executive and administrative qualifications and experience. The County Executive Officer's performance shall be evaluated by the Board from time to time. The County Executive Officer serves at the Board's pleasure and may be removed by affirmative vote of three of its members <u>unless otherwise specified in an employment contract between the Board and the County Executive Officer.</u>